

SENATE No. 537

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to strengthen the Commonwealth's strategic preparedness stockpiles.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No. 537

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 537) of William J. Driscoll, Jr. for legislation to strengthen the strategic preparedness stockpiles. Emergency Preparedness and Management.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 732 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to strengthen the Commonwealth's strategic preparedness stockpiles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the 2020 Version of the Massachusetts General Laws are hereby amended
2 by inserting, following Section 5S, the following new section:-

3 Section 5T. (a) The department shall, in collaboration with the Massachusetts Emergency
4 Management Agency (MEMA), and other relevant stakeholders, shall establish a permanent
5 emergency stockpile of strategic emergency readiness supplies, including but not limited to,
6 Personal Protective Equipment (PPE), medications, testing kits, and others deemed important for
7 emergency preparedness by the department and MEMA to be used and dispensed in the event of
8 public health emergencies at the local, state, and national levels.

(b) The department, in collaboration with the Massachusetts Emergency Management Agency (MEMA), the executive office of technology services and security, the department of elementary and secondary education and other stakeholders, as necessary, to conduct demand planning and stockpile modelling for emergency readiness supplies, including PPE, medications, testing kits, and others to be included at the discretion of the department. The department shall conduct demand planning and stockpile modeling for three separate stockpiles – one for use by the Commonwealth’s healthcare settings, including primary care offices, outpatient treatment centers, hospitals, emergency rooms, and others the department deems fit; one shall be education settings, including both public and private institutions, such as pre-K programs, K-12 schools, technical schools, colleges, and universities; and one shall be for use to the general public during major local, regional, state, and national disasters.

Said demand planning and supply modeling shall include 1) recommendations on the types of PPE and other emergency supplies to be included in each stockpile, 2) the anticipated demand for emergency supplies across a number of public health emergency scenarios, 3) the recommended quantities to be held in the stockpile for each type of supply, 4) the anticipated costs of procuring, managing, and maintaining said quantities, 5) methods to rotate supplies and minimize risk of supplies expiring, 6) mechanisms for municipalities and schools to access these supplies in the event of a local or regional public health emergency, 7) distribution planning, including the identification of emergency dispensing sites and possible mobile distribution programs to allocate the supplies in each stockpile to the relevant groups in the event of local, state, or national emergency declaration, and 8) possible strategies that could be used to reduce the costs of these supplies, including, but not limited to, the use of vendor-managed inventory programs.

32 No less than one year after the passage enactment of this act, the department of public
33 health shall file a report of its findings to the office of the House Speaker, the office of the Senate
34 President, chairs of the joint committee on public health, the chairs of the joint committee on
35 COVID-19 and emergency preparedness and management, and the clerks of both chambers of
36 the legislature.

37 Every two years thereafter, the department shall, in collaboration with the Massachusetts
38 Emergency Management Agency, the executive office of technology services and security, the
39 department of elementary and secondary education and other stakeholders, as necessary, reassess
40 the prior scenario planning, demand planning, and stockpile modeling, and make adjustments as
41 needed, or, if not needed, reaffirm the validity of the existing models.

42 (c) Every quarter, the department shall report to the office of the Speaker of the House,
43 the Senate President, the joint committee on Ways and Means, the joint committee on public
44 health, and the joint committee on COVID-19 and emergency preparedness and management, on
45 the current supplies within the stockpile and funds on hand for the stockpile.

46 (d) In maintaining and securing supplies, the department shall seek to maximize available
47 federal and state funding for this program.